competition among the journalists over who can irritate the military censor the most. I have been told that at least some in the Hebrew press have tried to incorporate positive information in their reports to the public but that the readers consistently ignored it. Assuming that this is true, the question arises as to whether this is not another surrender by the media to ratings. After all, even the simplest rules require some sort of balance, if only for appearance's sake.

"Irangate," the Pentagon Papers, and Watergate are cited over and over again by advocates of freedom of the press as milestones of the American media. What the public may not be aware of is a very long list of laws and rulings that constitute the other side of the equation.

The Freedom of Information Act, which advocates of freedom of speech are so proud of, and rightly so, also incorporates the principle of the state's right to censor information. To establish this governmental right, a separate executive order was signed in 1983, which states that it is permitted to censor information whose unauthorized publication may cause damage to national security.

The US Espionage Act of 1917 prohibits the passing of information to an enemy that may cause harm to the United States. It does not cover in its definition the leaking of information by government officials or by journalists. But in the case of an American citizen who worked as a researcher in the US Department of Defense, and on the side was also an editor for a British newspaper, and who gave the paper classified satellite photographs of Soviet vessels, a federal court ruled against him under the Espionage Act, arguing that the danger to the United States was the same whether the information was delivered to an agent of an enemy state or leaked to the press.

The Atomic Energy Act of 1954 prohibits the publication of information that will harm the United States or grant an advantage to its adversary or competitor. In the well-known precedent of *United States v. Progressive, Inc.*, 467 F. Supp. 990 (W.D. Wis. 1979), in which the publication of an article about the hydrogen bomb and how the United States attained it was examined, the article's author proved that the piece was written on the basis of openly available material, and yet the court ruled in favor of the state, on the basis of the test of damage caused.

Richard Welch, the CIA station chief in Athens, was murdered in December 1975, less than a month after his name was published in the media